

26PR00351 Estate of Joyce M. Starr

County: santa-barbara

Division: Decedent's Estate

Department: 3 SM-Cook

Hearing date: 2026-09-30

Motion: Petition to Determine Succession to Primary Residence

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Tentative Ruling: Estate of Joyce M. Starr

Case Number

26PR00351

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 09/30/2026 - 09:30

Nature of Proceedings

Petition to Determine Succession to Primary Residence

Tentative Ruling

Probate Notes:

The following must be submitted:

Supplement. Allegations must be sufficient to establish a valid reason why Petitioner gets property. (Prob. Code, § 13152.) There also must be sufficient evidence to establish the facts alleged in the petition. This is usually accomplished by the submission of the 1) Certificate of Death for decedent and spouse, which must be submitted to prove date of death of Decedent and spouse; and 2) recorded deed showing how title to the real property is currently held. (See Evid. Code §412 ["If weaker and less satisfactory evidence is offered when it was within the power of the party to produce stronger and more satisfactory evidence, the evidence offered should be viewed with distrust."].) Submission of Decedent's Death Certificate should be sufficient to clear this requirement in the case.

If the documents curing these deficiencies are not processed by 8:00 am on September 28, 2026, it is recommended that the matter be continued to date set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

312-C East Cook Street

Santa Maria, CA 93454

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